

9. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL
INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT COMERICA BANK & TRUST, N.A.
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

10. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF
DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT COMERICA BANK & TRUST;
REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86; MEMO OF P&AS
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

11. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF
DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT PETER DOCTER; REQUEST FOR
MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86; MEMO OF P&AS
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

12. 9:00 AM CASE NUMBER: C24-03201
CASE NAME: CASSANDRA JACKSON VS. CITY OF RICHMOND
*HEARING ON MOTION IN RE: LEAVE TO FILE COMPLAINT IN INTERVENTION - ADVANCED FROM
8/10/26
FILED BY: CONTRA COSTA COUNTY SCHOOLS INSURANCE GROUP
TENTATIVE RULING:

Off calendar due to stipulation filed by parties. Contra Costa County Schools Insurance Group may file a complaint in intervention.

13. 9:00 AM CASE NUMBER: C25-00190

CASE NAME: BRIAN FLANIGAN VS. JOHN GIL

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: GIL, JOHN

TENTATIVE RULING:

Defendants' Demurrer to the Complaint is **SUSTAINED WITH LEAVE TO AMEND**. Defendants shall prepare the order and shall serve and file notice of entry of the order. Plaintiff shall have 10 days from service of notice of entry of the order to file and serve an amended complaint.

Factual and Procedural Background

This case arises out of a motor vehicle collision that occurred on November 2, 2022, on Eastbound Highway 24 near Exit 10 in Orinda, Contra Costa County. Plaintiff alleges that Defendants John Gil and John Sophinos were working in the course and scope of their employment for Bay Area Carpet Cleaning when the collision occurred, and asserts a single cause of action for negligence. (Defs.' RJN, Ex. 1 [Complaint], ¶¶ 6, 14–18.) The applicable two-year statute of limitations under Code of Civil Procedure section 335.1 therefore expired on November 2, 2024.

This is Plaintiff's second action arising out of the November 2, 2022 collision. Plaintiff filed the first action on June 11, 2024 (Case No. C24-01525, the "2024 Action"), within the limitations period. (RJN, Ex. 2.) Plaintiff's counsel did not appear at the October 16, 2024 Case Management Conference in the 2024 Action, prompting the Court to issue an Order to Show Cause set for November 20, 2024. (RJN, Ex. 3.) Plaintiff's counsel did not appear at the November 20, 2024 OSC hearing either. The Court dismissed the 2024 Action that day. The minute order reflects: "No appearances. The Court dismisses this action without prejudice for failure to prosecute." (RJN, Ex. 4.) Although Code of Civil Procedure section 473(b) permits a party to seek relief from dismissal based on attorney fault within six months, no motion for relief under that provision was filed.

Plaintiff did not file this action (Case No. C25-00190, the "2025 Action") until January 23, 2025.

Defendants now demur to the complaint in the 2025 Action. Defendants argue that the Complaint is defective on its face because Plaintiff failed to commence this action within the applicable two-year statute of limitations under Code of Civil Procedure section 335.1, which requires a cause of action for "injury to ... an individual caused by the wrongful act or neglect of another" to be brought within two years. Defendants further argue that, although certain doctrines may toll the statute of limitations in appropriate circumstances, none applies here.

Legal Standard

"A demurrer tests the legal sufficiency of the factual allegations in a complaint." (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal.App.5th 989, 996.) The Court must determine "whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (*Id.*) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.)